

whether the plaintiff will be able to prove the facts alleged in the complaint. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1061.)

As an initial matter, the Motion to strike the Second, Third, and Fourth Causes of Action is DENIED on the grounds that a motion to strike is not the appropriate method for attacking an entire cause of action, as that is the function of a demurrer.

With respect to the remainder of the Motion, Defendants argue in Opposition that the out-of-state contracts support his causes of action in the Cross-Complaint and, as alleged in the Cross-Complaint, those contracts are part of the same continuous course of conduct by the same attorney against the same client and they arose from the same attorney-client relationship that produced the Settlement Agreement, which is the subject of the Complaint.

The Court, assuming the truth of all well-pleaded allegations in the Cross-Complaint, as it must, does not find the out-of-state contracts irrelevant or unrelated to the causes of action asserted therein.

Thus, the Motion is DENIED.

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In The Matter of Andrew Johannes Spaulding

26CV000480

PETITION FOR CHANGE OF NAME

TENTATIVE RULING: Notice has been properly published and no written objections have been filed. The petition is GRANTED without need for appearance.

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Thomas Kensok et al v. Alison A. Barstad

26CV000834

MOTION TO VACATE STAY OF PROCEEDINGS

TENTATIVE RULING: The matter is CONTINUED to July 9, 2026, at 8:30 a.m. in Dept. A to allow Plaintiffs to file and serve, no later than June 25, 2026, proof that they provided State Bar-approved notice, on the State Bar's mandated form, regarding Defendant's right to arbitrate fees, pursuant to Business & Professions Code section 6201, subdivision (a), and Rules of State Bar, rule 3.501(B).

Plaintiffs Synergist Law, P.C. and Law Offices Of Thomas Kensok (collectively, "Plaintiffs") move, pursuant to Business and Professions Code sections 6200-6206 and Code of Civil Procedure section 1281.2, for an order: (1) Overruling Defendant's Notice of Stay of Proceedings (Judicial Council Form CM-180) filed on May 4, 2026; (2) Vacating any stay of proceedings imposed or claimed; (3) Finding that Defendant Alison A. Barstad waived her right to mandatory fee arbitration by filing her Answer on May 4, 2026, before service of her Request